AGREEMENT FOR THE USE OF THE ACCREDITED CAB COMBINED ILAC MRA MARK

PARTIES

This Agreement is made and entered between THE SOUTH AFRICAN NATIONAL ACCREDITATION SYSTEM, a public entity and separate juristic person (established in terms of The Accreditation for Conformity Assessment, Calibration and Good Laboratory Practice Act 19 of 2006), situated at the Libertas Office Park, Cnr Libertas and Highway Streets, Pretoria

herein represented by

_____
(Print full Names and Surname)

In his/her duly authorised designation as Chief Executive Officer of
THE SOUTH AFRICAN NATIONAL ACCREDITATION SYSTEM

(Hereinafter "SANAS")

AND

AZURESKY (PTY) LTD
(Full Name of Accredited Conformity Assessment Body)

2024/223777/07
(Company Registration Number)

AZURESKY (PTY) LTD
(Trading Name if different from the Registered Name)

17 MAKRIEL ROAD, WADEVILLE, GERMISTON,1422
(Physical Address)

17 MAKRIEL ROAD, WADEVILLE, GERMISTON,1422
(Postal Address)

herein represented by

NONHLANHLA PAULA MSIBI
(Print Full Names and Surname of duly Authorized Person on behalf of the CAB)

DIRECTOR
(Designation of duly Authorized Person)

(Hereinafter "the CAB")

©SANAS

WHEREAS SANAS is authorised to use the ILAC MRA Mark issued by the International Laboratory Accreditation Cooperation ("ILAC") and to enter this agreement.

AND WHEREAS the CAB wishes to seek permission from SANAS to use the Accredited CAB combined ILAC MRA Mark for the scopes accredited by SANAS, and SANAS is willing to grant such permission, on the terms set out in this agreement.

1. DEFINITIONS

In this agreement, unless inconsistent with the context or otherwise specified, the following expressions shall have the following meaning:-

1.1 'Accreditation symbol" means the symbol issued by SANAS to be used by an accredited conformity assessment body to indicate its accredited status.

1.2 'Accredited CAB Combined ILAC MRA Mark' means collectively, the SANAS Accreditation Symbol and the ILAC MRA Mark, referred to in this Agreement as the "Combined Mark".

1.3 'Agreement' means this agreement.

1.4 'CAB' means the accredited Conformity Assessment Body.

1.5 'ILAC' means the International Laboratory Accreditation Cooperation.

1.6 'Scope' means the Scope of Accreditation, which is specific conformity assessment activities for which accreditation has been granted

1.7 'Parties' means SANAS and the accredited Conformity Assessment Body.

1.8 'MRA' means the ILAC Mutual Recognition Arrangement.

2. CONDITIONS OF AGREEMENT

2.1 The ILAC is the owner of the trade-mark known as the ILAC MRA Mark.

2.2 The CAB has non-exclusive and non-transferable approval to use the Combined Mark, subject to its maintenance of its ILAC MRA Membership and SANAS' membership and observance of conditions and restrictions set out in its agreement with SANAS.

2.3 The CAB applies for permission to use the Combined Mark, only in conjunction with SANAS's accreditation symbol, subject to the terms and conditions set out below.

2.4 SANAS grants to the CAB permission to use the Combined Mark for the Scopes of the ILAC MRA for which the CAB has been accredited by SANAS, from the date of this Agreement, subject to the conditions and restrictions as follows:

(a) The accredited CAB shall only use the ILAC MRA Mark together with the SANAS accreditation symbol in the manner set out in ILAC R7 "Rules for the Use of the ILAC MRA Mark", the SANAS R04 "Conditions for use of accreditation symbols, reference to accreditation and combined marks", and in accordance with the scopes of the ILAC MRA of which SANAS is a Signatory, and for which the CAB has been accredited;

(b) The Combined Mark shall only be used by the CAB established in economies where the ILAC MRA Mark is registered, or where an application for registration has been lodged and registration is pending. Accredited CABs are able to use the Combined Mark for activities undertaken outside the economy in which they are established.

(c) The Combined Mark shall be reproduced using an authorized copy obtained from SANAS and shall be reprinted according to the specifications as detailed in the SANAS R04.

(d) The permission granted to the accredited CAB to use the Combined Mark is non-transferable and non-exclusive;

(e) The accredited CAB shall not use the Combined Mark on any documentation unless SANAS's accreditation symbol and the accredited CAB's name or logo are included on the same displayed page and all are of approximately the same size;

(f) The accredited CAB shall use the Combined Mark in strict accordance with the instructions, conditions, standards of quality and ILAC MRA Mark and SANAS Accreditation Symbol specifications as supplied by SANAS in document R04 "Conditions for use of accreditation symbols, reference to accreditation and combined marks", at anytime and from time to time;

(g) The accredited CAB shall supply specimens of its usage of the Combined Mark to SANAS or ILAC, if requested by SANAS or ILAC;

(h) The accredited CAB shall not allow its clients to use the Combined Mark;

(i) The accredited CAB shall monitor and take suitable action to control its use of the Combined Mark and to prevent any incorrect references or misleading use by itself or its clients;

(j) The accredited CAB acknowledges and agrees that it has no proprietary right, title or interest in the Combined Mark;

(k) The accredited CAB agrees to co-operate fully and in good faith with SANAS and/or ILAC for the purpose of securing or protecting ILAC's right in the ILAC MRA Mark;

(l) The accredited CAB further agrees not to challenge directly or indirectly ILAC's right, title or interest in the ILAC MLA Mark.

2.5 The Agreement to use the Combined Mark may be terminated as follows:

(a) at any time by agreement of the parties;

(b) at any time by SANAS in the event that the conditions in this Agreement, or the Terms and Conditions of Accreditation (F147) are not satisfied;

(c) immediately in the event accreditation is withdrawn from the accredited CAB by SANAS;

(d) immediately in the event of the termination of the SANAS's membership of the ILAC MRA or ILAC membership;

(e) immediately in the event of the termination of the Agreement for the use of the ILAC MRA Mark between ILAC and SANAS;

(f) by SANAS duly advising the accredited CAB; or

(g) by the ILAC duly advising the accredited CAB.

2.6 The accredited CAB shall indemnify and save ILAC, its directors, officers, employees and authorized representatives, including SANAS, from and against any and all claims, liabilities, demands, proceedings, causes of action, costs and expenses (including legal fees as incurred) arising from the breach or default of the accredited CAB under this agreement.

End of Agreement for Use of the Accredited CAB Combined ILAC MRA Mark between SANAS and the Accredited Conformity Assessment Body.

Signed on behalf of Azuresky (Pty) Ltd
(Name of Accredited CAB)


(Signature)

NP Msibi
(Name of signatory)

Director
(Title/position)

22/06/2026
(Date)

Signed on behalf of SANAS

(Signature)

(Name of signatory)

(Title/position)

(Date)

SANAS hereby grants to the accredited CAB permission to use the Combined Mark for the scopes of the ILAC MRA for which the CAB has been accredited by SANAS.